

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS AND THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2017-3636 & 2017-3635

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO AND THE
CERTIFICATION TO PRACTICE ADDICTION COUNSELING IN THE STATE OF
COLORADO OF RACHEL ENGLISH, LICENSE NO. LPC 5447, CAC III NO. 6989,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional
Counselor Examiners and the State Board of Addiction Counselor Examiners (together,
"Boards") and Rachel English ("Respondent") as follows:

1. The Boards have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a Professional Counselor ("LPC") and certified to practice as an Addiction Counselor III ("CAC III") in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case Nos. 2017-3636 and 2017-3635. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or about August 22, 2017, Respondent pled guilty to DWAI, a misdemeanor, in Case No. 17M05501, in County Court, City & County of Denver, Colorado. She was sentenced to fifteen (15) months of supervised probation.
 - b. Respondent admitted to a DWAI conviction.
5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Boards find that the above conduct is a violation of §12-43-222(1)(c), C.R.S., which states:

§12-43-222. Prohibited activities—related provisions. (1) A person licensed, registered, or certified under this article violates this article if the person:

(e) Habitually or excessively uses or abuses alcohol, a habit-forming drug, or a controlled substance, as defined in section 18-18-102(5), C.R.S.

PROBATION

6. Respondent's license to practice professional counseling and certificate to practice addiction counseling in the State of Colorado are hereby placed on probation, to run concurrently with her criminal probation in Case No. 17M05501, commencing from the effective date of this Order. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

7. The period of probation is tolled during any time that Respondent is not practicing in this state, and such period of probation shall resume at such time as Respondent resumes practicing in the State of Colorado in accordance with this Order.

8. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a LPC and a CAC III in Colorado and is in full compliance with all terms of this Order.

9. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, and has provided evidence of satisfactory completion of her criminal probation in Case No. 17M05501, Respondent may request termination of probation. Request for termination of probation must be made in writing to the Boards, and Respondent is responsible for establishing, to the satisfaction of the Boards, that she has satisfied all terms and conditions of probation.

ABSTINENCE FROM ADDICTIVE SUBSTANCES

10. During the period of probation, Respondent shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed, or prescribed by an authorized person other than Respondent. Respondent shall use such habit-forming drug, controlled substance only as directed by such authorized person and only for the condition identified by such authorized person.

TERMS AND CONDITIONS

11. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

12. All expenses incurred or associated with any requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

13. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

14. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

15. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

16. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

17. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

18. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

19. Respondent shall obey all state and federal laws while this Order is in effect.

20. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

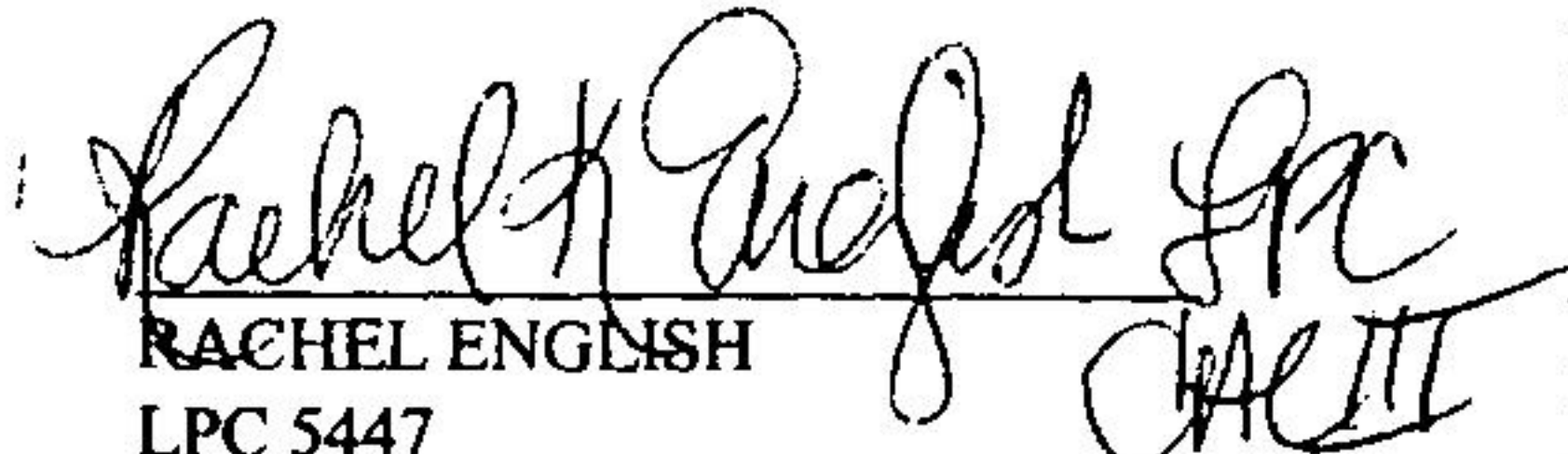
21. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

22. This Order shall be admissible as evidence at any hearing held before the Boards.

23. This Order shall be a public record in the custody of the Boards.

AGREED TO AND ACCEPTED BY:

RESPONDENT


RACHEL ENGLISH
LPC 5447
CAC III 6989

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS
AND STATE BOARD OF ADDICTION
COUNSELOR EXAMINERS


DARCIE MAGNUSON
Program Director

Effective this 6th day of
November, 2017.